



CHAPTER 65.

An Act to apply prize law to aircraft; to amend and explain the enactments relating to prize; and to provide for purposes connected with the matters aforesaid. [1st September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, the law relating to prize shall apply in relation to aircraft and goods carried therein as it applies in relation to ships and goods carried therein, and shall so apply notwithstanding that the aircraft is on or over land.

Application
of prize law
to aircraft.

(2) The amendments specified in the second column of Part I of the Schedule to this Act (being amendments necessary for giving effect to the preceding subsection) shall be made in the Acts specified in the first column of that Part of that Schedule.

(3) The provisions of the Naval Prize Act, 1864, specified in Part II of the Schedule to this Act shall not apply in relation to aircraft or goods carried therein taken as prize.

27 & 28 Vict.
c. 25.

2.—(1) The power conferred by section two of the Prize Courts Act, 1894, to issue any commission, warrant or instructions for the purpose of commissioning or

Establish-
ment of
prize courts
outside

His
Majesty's
dominions.
57 & 58 Vict.
c. 39.

regulating the procedure of a prize court, and to establish a Vice-Admiralty Court under the authority of any such commission or warrant, shall be exercisable not only in relation to a place in a British possession, but also in relation to a place in any of the following countries and territories, that is to say,—

- (a) any British protectorate,
- (b) any territory in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty, and is being exercised by His Majesty's Government in the United Kingdom, in the Commonwealth of Australia or in the Dominion of New Zealand, and
- (c) any other country or territory in which for the time being His Majesty has jurisdiction in matters of prize;

and accordingly subsection (1) of the said section shall have effect as if the reference therein to a British possession included a reference to any of the countries and territories mentioned in paragraphs (a) to (c) of this subsection; and subsection (2) of the said section shall, in relation to any of the said countries and territories, have effect as if for the reference in that subsection to the Vice-Admiral of the possession, there were substituted a reference to such authority as may be prescribed, in relation to that country or territory, by Order of His Majesty in Council.

(2) The Admiralty may appoint a judge, registrar and marshal, and other officers, of any Vice-Admiralty court established by any commission or warrant the issue of which is authorised by section two of the Prize Courts Act, 1894, as amended by this section, in any of the countries and territories mentioned in paragraphs (a) to (c) of the preceding subsection.

(3) Any commission or warrant for the purpose of commissioning or regulating the procedure of a prize court which has been issued before the commencement of this Act and is in force at the commencement of this Act, shall have effect as if any reference therein to ships included a reference to aircraft.

3. For the removal of doubts it is hereby declared that Colonial Courts of Admiralty within the meaning of the Colonial Courts of Admiralty Act, 1890, courts to which paragraph (b) of the proviso to subsection (3) of section two of that Act applies by virtue of an Order in Council under section twelve of that Act, and Vice-Admiralty courts established by any commission or warrant the issue of which is authorised by section two of the Prize Courts Act, 1894, as amended by this Act, are prize courts within the meaning of the Naval Prize Act, 1864.

Certain courts declared to be prize courts.
53 & 54 Vict. c. 27.

4.—(1) This Act extends to the following countries and territories, that is to say,—

Extent of this Act and existing Prize Acts.

- (a) the United Kingdom, the Channel Islands and the Isle of Man,
- (b) the Commonwealth of Australia and the Dominion of New Zealand,
- (c) British India and British Burma,
- (d) Newfoundland and every colony,
- (e) every British protectorate, and
- (f) every territory in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty, and is being exercised by His Majesty's Government in the United Kingdom, in the Commonwealth of Australia or in the Dominion of New Zealand,

and (to the extent of His Majesty's jurisdiction therein in matters of prize) to every other country or territory in which for the time being His Majesty has such jurisdiction.

(2) The enactments relating to prize, as amended by this Act, shall extend to the countries and territories mentioned in paragraphs (e) and (f) of the preceding subsection, and (to the extent of His Majesty's jurisdiction therein in matters of prize) to every other country or territory in which for the time being His Majesty has such jurisdiction.

5. This Act may be cited as the Prize Act, 1939; and the Naval Prize Acts, 1864 to 1916, and this Act may be cited together as the Prize Acts, 1864 to 1939.

Short title and citation.

SCHEDULE.

Section 1.

PART I.

AMENDMENTS OF PRIZE ACTS IN RELATION TO AIRCRAFT.

Act amended.	Amendment.
The Naval Prize Act, 1864 (27 & 28 Vict. c. 25).	In section two, for the words " and others on board any of Her Majesty's ships of war " there shall be substituted the words " airmen and others on board any of His Majesty's ships of war or any of His Majesty's military aircraft "; for the words " (other than ships) " there shall be substituted the words " but does not include ships, and does not include aircraft which are not part of the cargo of a ship "; and at the end of that section there shall be inserted the following paragraphs :— " The term ' aircraft papers ' includes " all books, passes, charter parties, bills " of lading, manifests, certificates, " licences, lists, tickets, notes, letters " and other documents and writings " delivered up or found on board a " captured aircraft. " The term ' any of His Majesty's " military aircraft ' includes any air- " craft belonging to His Majesty's naval, " military or air forces, and any hired " armed aircraft in His Majesty's ser- " vice." In section sixteen, after the second paragraph thereof there shall be inserted the following paragraphs :— " Every aircraft taken as prize and " brought to a place within the juris- " diction of a prize court, shall forthwith, " and without bulk broken, be delivered " up to the marshal of the court.

Act amended.

Amendment.

The Naval Prize
Act, 1864 (27 &
23 Vict. c. 25)—
cont.

“ If there is no such marshal, then the
“ aircraft shall be in like manner
“ delivered up to such person as the
“ court may appoint ”;
and in the third paragraph thereof after
the words “ The ship ” there shall be
inserted the words “ or aircraft ”, and
after the word “ officer ” there shall be
inserted the words “ or person ”.

In section seventeen, for the first paragraph
thereof there shall be substituted the
following paragraph :—

“ The captors shall with all practicable
“ speed after the ship is brought into
“ port, or the aircraft is brought to a
“ place within the jurisdiction of a prize
“ court, bring the ship papers or the
“ aircraft papers, as the case may be,
“ into the registry of the court ”;
in the second paragraph thereof, after
the words “ capturing ship ” there shall
be inserted the words “ or capturing
aircraft ”, and after the words “ ship
papers ” in each place where those words
occur, there shall be inserted the words
“ or aircraft papers ”; and in the
third paragraph thereof, after the words
“ ship papers ” there shall be inserted
the words “ or aircraft papers ”, after
the words “ captured ship ” there shall
be inserted the words “ or captured
aircraft ”, and after the words “ captur-
ing ship ” there shall be inserted the
words “ or capturing aircraft ”.

In section thirty-one, after the word “ ships ”
there shall be inserted the words “ and
aircraft ”; and after the word “ ship ”
there shall be inserted the words “ or
aircraft ”.

In section forty, in the first paragraph thereof,
after the word “ ship ” there shall be in-
serted the word “ aircraft ”, and after the
words “ any of Her Majesty’s ships of war ”
there shall be inserted the words “ or any
of His Majesty’s military aircraft ”; and
in the second paragraph thereof after

Act amended.	Amendment.
The Naval Prize Act, 1864 (27 & 28 Vict. c. 25)— <i>cont.</i>	the word "ship" in each place where that word occurs, there shall be inserted the words "or aircraft", and after the words "as a ship of war" there shall be inserted the words "or as a military aircraft".
	In section forty-one, in the first paragraph thereof after the word "ship" there shall be inserted the words "or aircraft", and after the words "any of Her Majesty's ships of war" there shall be inserted the words "or any of His Majesty's military aircraft"; for the second paragraph thereof there shall be substituted the following paragraph :—
	"The master or owner of the ship or his agent, or the pilot or owner of the aircraft or his agent, may, with the consent of the re-captors, unload and dispose of the goods on board the ship or aircraft, as the case may be, before adjudication";
	and in the third paragraph thereof after the words "United Kingdom" there shall be inserted the words "or the aircraft does not, within six months, return to a place within the United Kingdom," and after the word "ship" in the second place where that word occurs there shall be inserted the word "aircraft".
	In section forty-seven, after the word "ships" in each place where that word occurs there shall be inserted the word "aircraft" and after the words "United Kingdom" there shall be inserted the words "or brought to a place within the United Kingdom, as the case may be,".
	After section forty-eight, there shall be inserted the following section :—
	"48A. Where any aircraft or goods taken as prize is or are brought to any place within the jurisdiction of a prize court, the pilot or other person in charge or command of the aircraft which has been taken or in which the goods are brought shall, when required by any officer

Act amended.

Amendment.

The Naval Prize
Act, 1864 (27 &
28 Vict. c. 25)
—*cont.*

" of Customs deliver an account in
" writing under his hand concerning
" such aircraft and goods, giving
" such particulars relating thereto as
" may be in his power, and shall truly
" answer all questions concerning such
" aircraft or goods asked by any such
" officer, and in default shall forfeit a
" sum not exceeding one hundred pounds,
" such forfeiture to be enforced as for-
" feitures for offences against the laws
" relating to the Customs are enforced;
" and every such aircraft shall be liable
" to such searches as other aircraft are
" liable to; and the officers of the
" Customs may freely go on board such
" aircraft and bring to the King's ware-
" house any goods on board the same,
" subject, nevertheless, to such regula-
" tions in respect of military aircraft
" belonging to His Majesty as shall
" from time to time be issued by the
" Treasury."

In section fifty-five, in paragraph (1) thereof after the words " any of Her Majesty's ships of war " there shall be inserted the words " or any of His Majesty's military aircraft ", and after the word " ship " there shall be inserted the word " aircraft "; and in paragraph (5) thereof after the word " ship ", in each place where that word occurs, there shall be inserted the word " aircraft ".

The Prize Courts
(Procedure) Act,
1914 (4 & 5
Geo. 5. c. 13).

In section one, after the words " ships of war ", in each place where those words occur, there shall be inserted the words " or military aircraft ".

The Prize Courts
Act, 1915 (5 & 6
Geo. 5. c. 57).

In section three, in subsection (1) thereof, after the words " or the ship " there shall be inserted the words " or the aircraft "; and in subsection (2) thereof after the word " ship," in each place where that word occurs, there shall be inserted the words " or aircraft ".

PART II.

PROVISIONS OF NAVAL PRIZE ACT, 1864,
INAPPLICABLE IN RELATION TO AIRCRAFT OR GOODS
CARRIED THEREIN TAKEN AS PRIZE.

Section thirty.

Sections thirty-four and thirty-five.

Sections thirty-seven to thirty-nine.

Sections forty-two to forty-six.

Section forty-eight.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
26 York Street, Manchester 1; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 2d. net